Revision:
03/01/2021

Background:
Confidentiality regulations outline under what circumstances and to whom information may be released. These regulations pertain to all case records, electronic files, papers, and communications administered, or supervised by HHSA, including CalFresh, CalFresh Employment and Training (CFET) and the Able-Bodied Adults Without Dependents (ABAWD) Work Programs. These regulations were created to protect customers from identification or exploitation. Additional information regarding HHSA policies for Confidentiality in Self-Sufficiency Programs may be found in the Eligibility Policy and Procedure Guide.

Purpose:
The purpose of this policy is to protect the agency's records while providing authorized persons access to information. This revision updates the section to the new format. There are no changes due to State legislation.

Policy:
Names, addresses and all other eligibility information concerning the circumstances of any customer, including whether that person is or is not an applicant/recipient will not be disclosed for any purposes not directly related to the administration of public social services programs.

1. Collateral Contacts

Before a collateral contact is initiated, the customer must be informed of their option to get the required information themselves without using County forms. Except for Bureau of Public Assistance Investigations (BPAI) staff, the customer's signed consent must be obtained and made part of the case record prior to initiating collateral contacts.

2. Unauthorized Disclosure of Confidential Information

Unauthorized disclosure of confidential information by a County employee is a misdemeanor and may lead to criminal or civil liability for both the employee and the County.

3. Case Records

Case records are the original and permanent records of HHSA and are maintained for reference and audit purposes to document eligibility. All information in case records is considered confidential and will be safeguarded.

References:
MPP 19-000 and 63-201.3
Welfare and Institutions (WI) Code 10850
EPPG Confidentiality

Sunset Date:
This policy will be reviewed for continuance on or by 02/29/2024.

Approval for Release:



RICK WANNE, Director
Self-Sufficiency Services